



POLICE DEPARTMENT

April 10, 2025

-----X

In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2024-30537
Police Officer Osvaldo Nunez	:	
Tax Registry No. 965374	:	
101 Precinct	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU:	Ashley Baxter & Brian Arthur, Esqs. Civilian Complaint Review Board 100 Church Street, 10 th Floor New York, NY 10007
For the Respondent:	Michael Martinez, Esq. Worth, London & Martinez, LLP 111 John Street, Suite 640 New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Police Officer Osvaldo Nunez, on or about December 13, 2022, at approximately 1737 hours, while assigned to the 101 Precinct and on duty, in the vicinity of the Northeast corner of Caffrey Avenue and New Haven Avenue, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Nunez interfered with § 87(2)(b) use of a recording device by pushing § 87(2)(b) while § 87(2)(b) was lawfully filming police activity, without police necessity.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

2. Police Officer Osvaldo Nunez, on or about December 13, 2022, at approximately 1737 hours, while assigned to the 101 Precinct and on duty, in the vicinity of the Northeast corner of Caffrey Avenue and New Haven Avenue, Queens County, wrongfully used force, in that Officer Nunez pushed § 87(2)(b) without police necessity.

P.G. 221-02, Page 2, Prohibitions 11 & 12

USE OF FORCE

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on March 18, 2025. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The CCRB did not call any witnesses, relying upon the hearsay statement of § 87(2)(b) ("Complainant"). Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all the evidence in this matter, I find Respondent Not Guilty of Specifications 1 and 2.

ANALYSIS

Body-Worn Camera Evidence

The parties stipulated to the admission of Respondent's body-worn camera recording, CCRB's Exhibit 2. The following is a summary of the relevant evidence contained in the recording:

- 00:52-01:02: Respondent, Police Officer Jacqueline Demerest (now a detective), and Police Officer Sudan Osorio exit the RMP and approach § 87(2)(b) and § 87(2)(b) who are in the street walking backward facing them. Complainant is seen trailing behind the officers. § 87(2)(b) and § 87(2)(b) turn their backs on the officers and walk toward the Haven Manor Nursing Home. P.O. Osorio grabs § 87(2)(b)'s left shoulder, and while standing directly in front of the building, § 87(2)(b) turns around and raises his left arm.
- 01:02-01:09: Now facing the officers with both hands raised, § 87(2)(b) states, "Yo, n**ge*, I'm sixteen. Get off of me, get off of me, get off of me." He takes a step backward, and P.O. Demerest grabs his raised left arm. Looking into Respondent's camera, § 87(2)(b) says, "He's sixteen."
- 01:10-01:14: § 87(2)(b) asks the officers, "Why are you doing this -- because I'm walking in the street?" P.O. Demerest replies, "Yeah, because we told you to leave the street. You wouldn't get out of the street." § 87(2)(b) responds, "He was getting out of the street."
- 01:14-01:23: Complainant approaches the officers from behind; the light from his phone indicates that he is recording the interaction. At the same time, holding Complainant's arm, P.O. Demerest turns and makes an inaudible statement to him. P.O. Osorio gestures for Complainant to move backward, and then he turns to engage him. At the same time, Respondent asks § 87(2)(b) "Do you have an ID?" to which he replies, "No, I said I'm sixteen." Respondent replies, "It doesn't matter; when I was sixteen, I had ID." § 87(2)(b) replies, "I don't have ID."
- 01:24-01:28: P.O. Osorio points his finger, gesturing that Complainant should back up while also telling him to "back up." Without following P.O. Osorio's command, Complainant tells Osorio, "That's my brother," and continues to record. P.O. Osorio then places his hand on Complainant's stomach and pushes him backward. Complainant swats at P.O. Osorio's hand and says, "Stop touching me." P.O. Osorio pushes Complainant a second time, and Complainant again swats his hand at him.
- 01:28- 01:32: Respondent turns to join P.O. Osorio and Complainant, then pushes Complainant with two hands, forcing Complainant to take one step into the crosswalk, while his other foot remains on the curb. While continuing to record, Complainant tells Respondent, "Don't fucking touch me!" Both officers continue telling Complainant to "back up."
- 01:32- 01:40: Complainant hands his phone to § 87(2)(b) who takes over the recording. Respondent places his left hand on Complainant's chest, then grabs Complainant's arm with his right hand. Complainant continues swatting Respondent's hands and repeatedly states, "don't touch me!" Respondent says, "All we want you to do is

¹As Complainant's two companions were minors at the time of this encounter, they will be referred to by their initials.

back up.” Complainant replies, “Bro, stop pushing me.” Respondent replies, “All right, so just backup.”

01:41- 01 52: Complainant yells, “Yo, that’s my brother. n**ge*” and attempts to get past the police officers toward Officer Demerest and § 87(2)(b). Respondent replies, “I don’t care who it is; all we want is space; just back up a little bit,” and continues to push Complainant. Complainant swats Respondent’s hand, saying, “Don’t touch me at all.” Respondent replies, “I just did.” Complainant states, “Yo, I’m not playing with you, bro.” Respondent says, “I’m not playing either.”

01:53- 02:12: Respondent continues to push Complainant, and Complainant continues to swat back at him. When a scuffle ensues between the two, the camera footage becomes obscured, and sounds become inaudible.

Complainant’s Statement

CCRB investigators interviewed Complainant by telephone on February 9, 2023. His recorded statement and a transcript of the recording were admitted by stipulation as CCRB’s Exhibits 1 and 1A.

During the interview, Complainant stated that on December 13, 2022, at approximately 1727 hours, he was walking in the street near the northeast corner of Caffrey Avenue and New Haven Avenue. He was walking with his cousin, § 87(2)(b) and his sister, § 87(2)(b) he was walking on one side of the street, and they were walking on the other side. He recalled that a police car drove past them, flashed its lights, and continued (CCRB Ex. 1A at 14).

Complainant stated that the police car made a U-turn, then drove between himself, his cousin, and his sister, leaving them on opposite sides of the police car. A police officer inside the car said something to them, which he was unable to hear based upon his position. He stated that when he began recording the interaction on his phone, one of the police officers started pushing him backward and became aggressive. Complainant said, “I pushed him off me, and then another male cop walked up to me and tried to bully me. . . .” He continued, “I pushed both of them off and then went closer to my cousin and my sister; they kept pushing me.”

Complainant then gave the phone to § 87(2)(b) so she could start recording “in case something happened to [him] and my cousin.” He described the police officers “getting rough” and trying to tackle him. According to Complainant, once he fell to the ground, a “cop slammed [him].” He claimed the police officers were “harassing” his sister, “pushing her off the gate like she was a ragdoll.” Complainant and his cousin were eventually handcuffed (*Id.* at 15-16).

When the CCRB investigators asked Complainant for clarification, he explained that, at the time of the encounter, he had been coming from his cousin's house, heading toward the Mott Avenue subway station. He and his companions were walking in the street because of raccoons and cracked sidewalks. The street they were transiting was a two-way street (*Id.* at 22-24).

Complainant stated that the first time he saw the police car, it turned on its lights and stopped. Someone inside the vehicle said something to his cousin, which he couldn't hear, and then the car drove away before making a U-turn. Before the police car made the U-turn, his cousin and sister walked to his side of the street. The three police officers then “backed up to the old people place” (referring to the Haven Manor Nursing Home) (*Id.* at 25, 27, 32).

Complainant described the actions the three police officers took as “crowding” his cousin (CCRB Ex. 1A at 31). He stated that while the police officers were “saying a lot of stuff” to him that he did not recall, he was approaching his cousin to record the interaction when Officer Osorio² pushed him, followed by another push from Respondent. Complainant asserted that he was six feet away from the police interaction when he first began recording, then moved to within four feet of the police officers; it was at that time that Officer Osorio started to push him away (*Id.* at 33-34). While conceding that Officer Osorio told him to move back before he pushed him, Complainant felt that he was “the proper distance” from his cousin (*Id.* at 37).

² Complainant refers to Police Officer Osorio as “the Indian officer.”

Complainant described Officer Osorio's actions as, first, a single-handed push; when Respondent joined him, he became more aggressive. He recalled being pushed twice by Officer Osorio while being told to move. While Complainant was engaged in the interaction with Officer Osorio and Respondent, Officer Demerest³ was with § 87(2)(b) who began trying to get to Complainant, causing her to push § 87(2)(b) twice before she "[t]ook] him down" (*Id.* at 38- 40).

According to Complainant, Respondent pushed him harder than Officer Osorio did; when Respondent approached him, he immediately started pushing Complainant and eventually pushed him to the edge of the sidewalk (*Id.* at 41). Complainant stated that Respondent gave him one "hard" push before he handed off his phone to his sister, then pushed him four more times (*Id.* at 50).

He further admitted that he pushed the police officers back by moving their hands away from him. He explained that he was trying to move them away from him because he did not want to be arrested⁴ (CCRB Ex. 1A at 44-47). Complainant asserted that one of the police officers had placed their knee on his back as he was being handcuffed, remarking, "it looks like that from the video" (*Id.* at 47-48)⁵. While Complainant claimed to have had trouble breathing during the encounter because of anxiety, a pre-existing heart problem, and dirt in his mouth, he was unable to recall where on his back he felt pressure. He also admitted that he was trying to

³ During this telephonic interview, Complainant refers several times to reviewing a video and appears to do so in real-time before responding to several questions. When the CCRB investigator asked Complainant to describe "the female police officer," he said he would "review the video." When he returned to the call, he identified her as "PO Demerest, blonde hair, hazel eyes, shield 8402" (CCRB Ex. 1A at 28-29). When he was questioned about another aspect of the police interaction, he answered the CCRB investigator, "I'm looking at the video right now . . . or do you want it from the top of my head?" (*Id.* at 66-67).

⁴ Complainant stated that he did not want to be arrested for a second time, then hesitated before supposedly correcting himself and asserting that it would have been his first arrest (CCRB Ex. 1A at 47).

⁵ Complainant conceded that he had no independent recollection of what P.O. Osorio may have done. He offered, "From the video, from the car video, it seems like he had his knee on my upper back, but I don't really remember, so I can't tell you if he did or not" (*Id.* at 55-56).

get up as he was being handcuffed because of what Police Officer Osorio was allegedly doing to his sister (*Id.* at 52, 56-57).

Complainant claimed that the police officers “treated [his sister] like a rag doll” and that she was only trying to “help” § 87(2)(b) before Officer Osorio started pushing and pulling her off the gate. He declared that he wanted the police officers to lose their jobs because of their behavior (*Id.* at 42, 58). When asked what he observed his sister doing, Complainant stated that he could not recall; he speculated that she may have stopped recording the interaction but then stated, “I do have a recording of her getting pushed by the cops.”⁶ According to Complainant, she was trying to get § 87(2)(b) which Officer Osorio attempted to prevent, “but she wasn’t giving up, so he just kept pushing and pulling her” (*Id.* at 60-61).

Complainant stated that while he was being handcuffed, § 87(2)(b) tried to get to him and was himself taken to the ground and handcuffed by Officer Osorio and Officer Demerest (CCRB Ex. 1A at 53-54).

Respondent’s Testimony

Respondent testified that he had been assigned to the 101 Precinct since May 2022 (T. 24). On December 13, 2022, he was working a 1400 x 2235 tour with Police Officer Osorio and Officer Demerest. At 1737 hours, while driving southbound on New Haven Avenue, in Queens County, he saw three individuals, Complainant, § 87(2)(b) and § 87(2)(b) walking northbound in the middle of the street, impeding vehicular traffic. Respondent testified that it was a two-way street; the roadway had no yellow lines, and cars were honking their horns. He testified further that he and his fellow officers asked the group to use the sidewalk and then drove away; after doing so, they observed that the three individuals had not moved onto the sidewalk, and cars were still blowing

⁶ Complainant then confirmed this assertion after reviewing a video, saying, “I can see right now, yes, she was recording” (*Id.* at 61).

their horns. At that point, Respondent made a U-turn and drove back toward the group to take enforcement action (T. 25-28).

Respondent testified that he stepped out of the police vehicle and approached § 87(2)(b) when he asked § 87(2)(b) for identification, § 87(2)(b) stated, "I'm 16; I don't have an ID." As Respondent was asking § 87(2)(b) questions, Officer Demerest assisted him, and Officer Osorio was rear security. Respondent testified that he observed Complainant "push and shove" Officer Osorio's hand several times; he heard Osorio say, "You can record, just give us some space." Respondent testified that he turned toward Complainant and gave him a two-handed push, saying, "Just give him some space; all he wants is space. You can record" (T. 29).

Respondent testified the reason he wanted Complainant to move back was that the three police officers all were carrying firearms and Tasers; from a tactical standpoint, it was unsafe to have their backs turned as they conducted their enforcement action. He described Complainant's demeanor during the encounter as "irate" and "aggressive." Respondent confirmed that Complainant was holding a mobile telephone in his hand during the encounter and denied knocking it from Complainant's hand. He testified further that every time Police Officer Osorio pushed Complainant, Complainant attempted to push Osorio's hand away. Respondent explained that when he became involved with Complainant, he intended to create a larger "zone of safety;" to do that, he pushed Complainant with two hands and gave him a direction to "get back" (T. 30-32).

Respondent testified that after he pushed Complainant, Complainant handed his mobile telephone to § 87(2)(b) then began to engage directly with him. He testified that he told the Complainant that he could record, "Just give us some space; could you just step back?" Complainant then "shoved" Respondent's hand several times; at that point, he decided to place

him under arrest. Respondent testified that he “grappled” with Complainant on the ground and eventually placed handcuffs on him. He testified further that as he attempted to place Complainant under arrest, Complainant pushed and flailed his arms to resist the arrest, while being “belligerent and aggressive.” Respondent testified further that he called for additional officers to respond to the scene and was injured during the arrest, suffering a contusion to his shoulder (T. 32-34). He acknowledged that he had discretion in this scenario to issue a warning or a summons for either jaywalking or obstructing vehicular traffic. Respondent reiterated that he chose to take enforcement action against Complainant because he was “on our backs when we [were] trying to conduct a stop ...” (T. 34-35).

On cross-examination, Respondent acknowledged that Complainant and his companions did not display any weapons or attempt to run away (T. 36-37). He also conceded that while he directed Complainant to “step back,” he did not specify how far away he needed to move. Finally, Respondent testified that while he did not recall whether he pushed Complainant into the street, he acknowledged, after being confronted with his body-worn camera recording, that one of his pushes caused Complainant's foot to leave the sidewalk and step into the street (T. 45-47).

Credibility

It is long-settled that hearsay evidence is admissible in this Tribunal and may form the factual basis for a finding of misconduct if it is deemed reliable. The finder-of-fact must scrutinize the out-of-court statement for several credibility factors, including internal consistency, logic, and corroboration by independent evidence. The Tribunal must also consider whether fundamental fairness allows the statement to be credited despite the lack of an opportunity for Respondent to confront the declarant under oath during the trial. Based upon the totality of the circumstances, I find Complainant's hearsay statement unreliable.

First, the interview was conducted telephonically under circumstances that call into question his motivation for making the factual assertions in his statement. He admitted during the interview that he was on a train as he attempted to answer questions (CCRB Ex. 1A at 58). The difference between providing sworn testimony in a courtroom from the witness stand and providing a statement alleging police misconduct before a train car full of listeners is stark. This Tribunal cannot assess whether Complainant's factual assertions and the way he made them were influenced by the presence of an audience.

Second, Complainant made several unsolicited admissions during the interview that he viewed at least one, and possibly two, video recordings as he was being questioned. This raises the question of whether Complainant provided information about the incident based upon his independent recollection or what he gleaned from real-time viewing of a video recording.

Third, Complainant made a flippant assertion that Officer Demerest was racist because she told him that he and his two family members were stopped for "jaywalking," and he had observed other individuals "jaywalking" in front of a precinct without consequence (CCRB Ex. 1A at 75-76). This rationale strongly suggests that he would make inflammatory and derogatory claims about police officers to serve his interest. Finally, Complainant also admitted that he wanted the police officers involved in the incident to lose their jobs because of the way they treated his sister, [§ 87(2)(b)]. This unambiguous declaration amounts to some measure of bias.

In contrast, Respondent's testimony was clear, concise, and corroborated by the independent evidence in the case. I witnessed his demeanor as he testified during the trial, particularly how he responded to questions. Regardless of the examiner, his testimony was responsive and logical. Based upon the foregoing, I credit his testimony before the Tribunal.

*Specification 1: Interference with a Recording Device**Specification 2: Use of Force*

I find that CCRB has failed to establish by a preponderance of the credible, relevant evidence that Respondent interfered with Complainant's use of a recording device without police necessity by pushing him while he was recording. I further find that CCRB has failed to establish by a preponderance of the credible, relevant evidence that Respondent used force without police necessity by pushing Complainant while he was recording.

I credited Respondent's testimony that he spoke to Complainant several times and told him to step away from the police encounter involving his cousin, § 87(2)(b). The evidence establishes that Respondent acknowledged Complainant's right to record the encounter but also informed him that it would have to be done at a distance, providing the police officers a "zone of safety." Only after Police Officer Osorio had told Complainant to move back and Complainant failed to do so was he pushed about four feet.

While anyone can record a police-citizen encounter, the right is not absolute. A person attempting to record such an encounter must do so from a distance which allows the police officers to perform their duties safely and without interference. The Tribunal will assume that Complainant genuinely was concerned about his cousin, § 87(2)(b) and wanted to make sure his recording acted as a disincentive for the police officers to engage in misconduct. That said, Complainant did not have an unlimited right to record the incident from a vantage point of his choosing. Complainant's exhortations, as well as his persistent efforts to get closer to his cousin after repeated warnings to move away, appeared designed to prevent Respondent and his fellow police officers from taking any action, which potentially ran afoul of Penal Law Section 195.05, Obstructing Governmental Administration in the Second Degree.

It was thus necessary, and appropriate, for Respondent to use limited and reasonable force to create a perimeter outside of which Complainant could have recorded the incident. Complainant, through his actions, prolonged the length of the police encounter and made it potentially more hazardous for himself, his companions, the police officers involved in the encounter, and the public. Based upon the totality of the circumstances, it was necessary to use force against Complainant to allow these police officers to conduct their investigation, take whatever enforcement action they deemed necessary, and safely bring the encounter to a conclusion.

Complainant, by his own admission, came within four feet of the police officers; this, in the view of the Tribunal, did not amount to a sufficient zone of safety within which they could reasonably and safely conduct their investigation. When Respondent did begin pushing Complainant backward, the Body-Worn Camera recording shows Complainant stepping backward approximately four feet. Complainant is not pushed off his feet and only takes one step off the curb into the crosswalk. There is no evidence that Respondent endangered Complainant in any way or that the force he used was excessive.

Accordingly, I find Respondent Not Guilty of Specifications 1 and 2.

Respectfully submitted,

Paul M. Gamble, Sr.
Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials

APPROVED
MAY 30 2025
Jessie Tisch
JESSICA S. TISCH
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



MOHAMMAD KHALID
INTERIM CHAIR

April 9, 2025

Honorable Jessica S. Tisch Police Commissioner

New York City Police Department One Police Plaza

New York, NY 10038

Re: Police Officer Osvaldo Nunez

Disciplinary Case No. 2024-30537

Commissioner:

The above-referenced case was tried on March 18, 2025, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter "CCRB"), pursuant to the Memorandum of Understanding between the CCRB and the New York City Police Department.

CCRB has reviewed the draft decision of Assistant Deputy Commissioner of Trials ("ADCT"), Paul M. Gamble, dated April 1, 2025. I respectfully submit the following comments regarding that draft decision pursuant to Fogel v. Board of Education, 48 A.D.2d 925 (2d Dept. 1975).

Respondent, Officer Osvaldo Nunez was charged with the following:

1. Police Officer Osvaldo Nunez, on or about December 13, 2022, at approximately 1737, while assigned to 101 PCT and on duty, in the vicinity of Northeast corner of Caffrey Avenue and New Haven Avenue, Queens County, abused his authority as a member of the New York City Police Department, in that Officer Nunez interfered with § 87(2)(b) use of a recording device by pushing § 87(2)(b) while § 87(2)(b) was lawfully filming police activity, without police necessity.

AG 304-06 PAGE 1 PARA 1 PROHIBITED CONDUCT

2. Police Officer Osvaldo Nunez, on or about December 13, 2022, at approximately 1737, while assigned to 101 PCT and on duty, in the vicinity of Northeast corner of Caffrey

Avenue and New Haven Avenue, Queens County, wrongfully used force, in that Officer Nunez pushed § 87(2)(b) without police necessity.

PG 221-02, PAGE 2, Prohibition 11 USE OF FORCE; 221-02, PAGE 2, Prohibition 12

The Court found Officer Nunez not guilty of Specification One (1) and Specification Two (2).

It is respectfully requested that you reject ADCT Gamble's findings and find Respondent Nunez guilty of Specification One (1) and Specification Two (2) and accept CCRB's recommended penalty of TWENTY (20) penalty days and TEN (10) penalty days, to run concurrently.

SUMMARY OF THE RELEVANT EVIDENCE AT TRIAL

The relevant evidence introduced at trial by CCRB were CCRB Exhibits 1, the audio of § 87(2)(b) interview with CCRB, Exhibit 1A, the transcript of § 87(2)(b) interview; Exhibit 2, Officer Nunez's body worn camera footage from the incident, and Exhibit 3, the Redacted Prisoner Pedigree Card regarding § 87(2)(b) and the herein incident. § 87(2)(b) did not testify at trial in this matter.

In his interview with CCRB, § 87(2)(b) stated that on December 13, 2022, at approximately 5:37 pm, he, his cousin § 87(2)(b) and his sister § 87(2)(b) were walking in the street near the northeast corner of Caffrey Avenue and New Haven Avenue. (Exhibit 1A at 14). The teens had just left § 87(2)(b) house and were walking to the Mott Avenue train station. (Exhibit 1A at 19-20). The teens were walking in the street to avoid raccoons and because the sidewalks were cracked. (Exhibit 1A at 22). The teens were walking in the street for a short time before a police car drove by them and flashed its lights. § 87(2)(b) did not hear what the officers¹ said as they drove by, and the teens continued walking in the street. The police car then made a U-turn and drove in between § 87(2)(b) his cousin, and his sister, leaving the teens on opposite sides of the police car. (Exhibit 1A at 14).

§ 87(2)(b) explained that after the officers stopped the teens, they went onto the sidewalk in front of the Haven Manor Nursing Home.² (Exhibit 1A at 15). All three officers approached § 87(2)(b) and began to question him. § 87(2)(b) estimated that he was about six feet away from § 87(2)(b) when he pulled out his cell phone to record § 87(2)(b) interaction with Detective Demerest. (Exhibit 1A at 34). § 87(2)(b) explained that he began to record his cousin's interaction with the officers because he was afraid something might happen, and he had watched videos where the police took advantage of young black men. (Exhibit 1A at 37). § 87(2)(b) stated that he took three steps toward

¹ The officers are Detective Jacqueline Demerest, Police Officer Sudan Osorio, and Respondent Police Officer Osvaldo Nunez – all from the 101st Precinct.

² In his CCRB interview, § 87(2)(b) refers to the nursing home as "something for old people" and "the old people place" (Exhibit 1A at 15 and 32).

§ 87(2)(b) to continue recording and was about four feet away from § 87(2)(b) when Officer Osorio³ stopped him. (Exhibit 1A at 33-35). Officer Osorio told § 87(2)(b) to move back and started pushing § 87(2)(b) chest, ribs, and stomach with one hand to make § 87(2)(b) move back. § 87(2)(b) felt like he was the proper distance from § 87(2)(b) to record. § 87(2)(b) pushed Officer Osorio's hand off from his torso. Officer Osorio pushed § 87(2)(b) twice with one hand and told § 87(2)(b) to move. (Exhibit 1A at 37-38). § 87(2)(b) stated that Officer Nunez then approached him and immediately pushed his torso while § 87(2)(b) was near the edge of the sidewalk. (Exhibit 1A at 41). § 87(2)(b) stated that the push was hard. § 87(2)(b) believes that Officer Nunez's push was noticeably different from Officer Osorio's push. (Exhibit 1A at 41-42). § 87(2)(b) stated that he could tell things were going to get aggressive after Officer Nunez pushed him hard, so he gave his phone to his sister so she could record what the officers were doing in case something happened to § 87(2)(b) and/or § 87(2)(b) (Exhibit 1A at 15 and 45). § 87(2)(b) stated that Officer Nunez pushed him in his torso about four more times after § 87(2)(b) handed his cell phone to his sister. § 87(2)(b) may have pushed Officer Nunez back and pushed Officer Nunez's hand away when Officer Nunez tried to push him. (Exhibit 1A at 43 and 44).

SUMMARY OF RESPONDENT OFFICER OSVALDO NUNEZ'S TESTIMONY

On his direct examination, Respondent testified that he, Detective Demerest and Officer Osorio were patrolling when he observed the teens jaywalking and obstructing vehicular traffic in the vicinity of New Haven Avenue and Caffrey Avenue. (Transcript at 25-26). Respondent stated that cars were honking at the teens, and the officers asked the teens to use the sidewalk. The officers made a U-Turn to stop the teens because they continued to walk in the street instead of the sidewalk. (Transcript at 26, 28). Respondent testified that the officers could let the teens off with a warning or at most issue summonses for jay walking or impeding vehicular traffic. (Transcript at 34-35).

Respondent stated that once the officers stopped the teens, they decided to address them one at a time pursuant to police tactics. The officers approached § 87(2)(b) first and asked him for identification. § 87(2)(b) responded that he was sixteen years old and did not have an ID. (Transcript at 29). Respondent stated that while he and Detective Demerest were investigating § 87(2)(b) § 87(2)(b) had his cell phone in his hand recording § 87(2)(b) interaction with the officers (Transcript at 31). Respondent testified that he observed § 87(2)(b) shove Officer Osorio's hand multiple times and that he heard Officer Osorio tell § 87(2)(b) that he could record but that § 87(2)(b) should move back. Respondent stated that he observed Officer Osorio push § 87(2)(b) back two times. (Transcript at 29, 31). Respondent testified that he decided to intervene by using a two-handed push against § 87(2)(b) torso and tell him to move back because § 87(2)(b) was in the officer's zone of safety. (Transcript at 29, 32, 35). Respondent testified that he defined the zone of safety as a "hand's distance." (Transcript at 30).

³ In his CCRB interview, § 87(2)(b) refers to Officer Osorio as "the Indian officer." (Exhibit 1A passim).

Respondent testified that after he pushed § 87(2)(b) using his two hands, he observed § 87(2)(b) handing his cell phone to his sister. Respondent stated that he told § 87(2)(b) that he could record, but that § 87(2)(b) should move back. (Transcript at 32). Respondent stated that § 87(2)(b) shoved his hands and did not move back. (Transcript at 32-33).

On cross-examination, Respondent admitted that other than jaywalking and impeding vehicular traffic, there was no other reason the officers stopped the teens. (Transcript at 36). Respondent testified that he did not see the teens display any weapons or attempt to run away from the officers. (Transcript at 36-37). Respondent also admitted that while he told § 87(2)(b) to “step back,” he did not specify how far away § 87(2)(b) needed to move. (Transcript at 45). Finally, Respondent conceded that his two-handed push caused § 87(2)(b) foot to leave the sidewalk and step into the active roadway. (Transcript at 47-48).

RESPONDENT IS GUILTY OF INTERFERING WITH § 87(2)(b) USE OF A RECORDING DEVICE BY PUSHING HIM AND GUILTY OF USING FORCE BY PUSHING § 87(2)(b) WITHOUT POLICE NECESSITY

CCRB disagrees with the Tribunal’s finding that Respondent’s use of force against § 87(2)(b) was necessary and reasonable and that such force did not interfere with § 87(2)(b) use of a recording device. (Draft Decision at 11-12).

The evidence shows that while § 87(2)(b) was trying to record his cousin’s interaction with the police, Officer Osorio approached him. The Tribunal notes that § 87(2)(b) seemed genuinely concerned about his cousin, § 87(2)(b) and was recording to discourage the police officers from engaging in misconduct. (Draft Decision at 11). Officer Osorio told § 87(2)(b) that he could record but asked § 87(2)(b) to step back and give officers some room. At that time, Officer Osorio pushed § 87(2)(b) backwards by extending his right arm at about chest level with his palm open against § 87(2)(b) pushed Officer Osorio’s hand off of his body, and Officer Osorio placed the hand back on § 87(2)(b) torso and repeated his instruction to back up. The evidence shows that § 87(2)(b) did not respond aggressively to Officer Osorio’s actions. § 87(2)(b) did not take any steps forward after being pushed back twice by Officer Osorio or threaten or become violent with Officer Osorio.

Officer Osorio’s interaction with § 87(2)(b) lasts approximately seven seconds before Respondent rushes towards § 87(2)(b) and pushes him. Respondent’s two-handed push was so forceful that § 87(2)(b) was pushed off the sidewalk and into the street into oncoming traffic. The evidence showed that this use of force by Respondent was excessive and unnecessary, and completely out of proportion to what was happening. Respondent’s excessive use of force unnecessarily escalated a stop for jaywalking, a violation.

Under NYPD Administrative Guide Procedure 304-21, individuals have a right to “lawfully observe and/or record police activity,” which extends to public places such as streets and sidewalks. However, this right may be limited “for reasons such as the safety of officers or other members of the public, or when a violation of law is committed by the individual(s) who are observing/recording.” Members of service may not “[i]ntentionally prevent, or attempt to prevent,

an individual from recording police activities” or “[t]hreaten, intimidate, or otherwise discourage an observer from recording police activities.”

Patrol Guide Procedure 221-01 states that “[f]orce may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances. . . . When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force.”

Respondent’s actions were markedly different from those of Officer Osorio. Before issuing any verbal command, and after observing Officer Osorio interact with § 87(2)(b) for approximately seven seconds, Respondent immediately pushed § 87(2)(b) with two hands, using so much force that § 87(2)(b) stumbled backwards off of the sidewalk and into the street. Notably, Officer Osorio had already caused § 87(2)(b) to take two or three steps backward by the time Respondent pushed § 87(2)(b). At the time of Respondent’s two-handed push, § 87(2)(b) was no longer close enough to Detective Demerest and his cousin to cause any kind of interference or safety concern.

Finally, under the totality of the circumstances at the time Respondent forcefully pushed § 87(2)(b) including that § 87(2)(b) was not in custody or being taken into custody at that time, had pushed away Officer Osorio’s hand but otherwise did not pose any kind of threat to the officers, was visibly smaller and younger than both Officer Osorio and Respondent, and had been interacting with Officer Osorio for only a few seconds, during which time he had in fact been moved away from the police activity at issue, Respondent’s forceful two-handed push was unreasonable and excessive.

CONCLUSION

For all the aforementioned reasons, CCRB asks you to carefully review the evidence, which strongly supports the finding of guilt on Specification 1 and Specification 2 against Police Officer Osvaldo Nunez, and CCRB recommends the penalty of forfeiture of TWENTY (20) penalty days and TEN (10) penalty days, both to run concurrently.

Respectfully submitted,

ABaxter

Ashley Baxter, Esq.

APU Prosecutor

Civilian Complaint Review Board

Administrative Prosecution Unit

Cc: Michael Martinez, Esq.